

[1 EDW. 8. &
1 GEO. 6.]

*Mansfield District
Traction Act, 1937.*

[Ch. xxxvi.]



CHAPTER xxxvi.

An Act to extend the Mansfield District Traction Company's powers of running public service vehicles to confer further financial and other powers upon the Company and for other purposes. A.D. 1937.
[10th June 1937.]

WHEREAS the Mansfield District Traction Company (hereinafter called "the Company") were incorporated by the Mansfield and District Light Railways Order 1901 by their then name of the Mansfield and District Light Railway Company and under the powers contained in the Mansfield and District Light Railways Orders 1901 to 1926 constructed a system of light railways in the county of Nottingham :

And whereas by the Mansfield District Traction Act 1929 the Company were authorised to abandon the said light railways and to provide and work trolley vehicles and omnibuses : 19 & 20
Geo. 5.
c. lxxvi.

And whereas the said light railways have been abandoned and the Company run services of omnibuses in substitution therefor :

And whereas it is expedient that the Company should be empowered to run public service vehicles as by this Act provided :

And whereas it is expedient that such other powers be conferred upon the Company and such other provisions be made as are in this Act more particularly set forth :

A.D. 1937.

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

PRELIMINARY.

Short title.

1. This Act may be cited as the Mansfield District Traction Act 1937.

Citation
of Acts.

2. The Mansfield District Traction Acts 1901 to 1929 and this Act may be cited as the Mansfield District Traction Acts 1901 to 1937.

Incorporation of Act.
26 & 27 Vict.
c. 118.

3. Subject to the provisions of this Act Part III (Debenture stock) of the Companies Clauses Act 1863 as amended by subsequent Acts is incorporated with and forms part of this Act.

Interpre-
tation.

4. In this Act the several words and expressions to which by the Act of 1929 meanings are assigned shall have the same respective meanings unless varied by this Act or unless there be something in the subject or context repugnant to such construction And in this Act unless the context otherwise requires the following expressions shall have the respective meanings in this section applied to them (that is to say) :—

“ the Company ” means the Mansfield District Traction Company ;

“ the Act of 1929 ” means the Mansfield District Traction Act 1929 ;

“ the existing Act and Orders ” means the Mansfield District Traction Acts 1901 to 1929 ;

“ public service vehicle ” has the meaning given to that expression by the Road Traffic Acts 1930 to 1934.

PUBLIC SERVICE VEHICLES.

Power to
run public
service
vehicles.
20 & 21
Geo. 5. c. 43.

5.—(1) Subject to the provisions of Part IV of the Road Traffic Act 1930 as amended by subsequent Acts the Company may run public service vehicles and provide work and maintain road services of such vehicles.

(2) So much of subsection (1) of section 32 (Power to run omnibuses) of the Act of 1929 as restricts the areas within which the Company may provide maintain and work omnibuses is hereby repealed. A.D. 1937.

6. The following provisions of the Act of 1929 shall extend and apply to and for the purposes of this Act as fully and effectually as if such provisions had been re-enacted with any necessary modifications and with the substitution of "public service vehicles" for "omnibuses" in this Act (that is to say):—

Subsections (4) (6) and (7) of section 32 (Power to run omnibuses);

Section 33 (Application to trolley vehicles and omnibuses of certain provisions of existing Orders);

Section 34 (Parcels &c.);

Section 36 (List of fares &c. to be exhibited);

Section 39 (Power to purchase lands);

Section 40 (Conveyance of mails);

Section 41 (Attachment of signs indicating stopping places);

Section 42 (Cloak-rooms &c.);

Section 45 (For protection of railway companies);

Section 46 (Saving for railway companies);

Section 47 (Working and other agreements);

Section 48 (Power to provide vehicles and equipment);

Section 49 (Power to hold patent rights);

Section 50 (Saving certain powers of Mansfield Corporation);

Section 60 (Application of moneys);

Section 61 (Consents of local or road authority);

Section 62 (Orders &c. of Minister);

Section 67 (Recovery of demands);

Section 68 (Recovery of penalties &c.).

7.—(1) The Company may erect and maintain at suitable places on or near any of the routes of their services of public service vehicles shelters and other accommodation for passengers and servants of the Company but shall not use for the purpose any part

A.D. 1937. of a highway without the consent of the local authority
— of the district in which such highway is situate and
 (if the local authority are not the road authority) of the
 road authority which may be given subject to such
 reasonable terms and conditions as such authority may
 think fit Before the Company make application for
 such consent they shall notify the chief officer of police
 of the police district in which such highway is situate.

(2) The Company may make byelaws and regula-
tions for the regulation use and management of any
such shelter or other accommodation :

Provided that the Company when submitting any
such byelaws to the Minister shall forward a copy thereof
to the clerk of the county council of the county of
Nottingham and if such byelaws relate to the borough
of Mansfield shall also forward a copy thereof to the
town clerk of that borough and the said county council
and the mayor aldermen and burgesses of the said
borough may within twenty-one days from the receipt
of such copies respectively submit any objections or
representations with respect to such byelaws to the
Minister and before approving such byelaws the Minister
shall have regard to any objections or representations
so submitted.

(3) The Company shall not place or permit to be
placed on or in any shelter or other accommodation
erected in any highway under the powers of this section
any advertisement other than advertisements giving
information as to the services of the Company.

(4) (a) Nothing in the section of this Act of which
the marginal note is " Incorporation of provisions of Act
of 1929 " or in this section shall authorise the Company—

25 & 26
Geo. 5. c. 47.

(i) to erect place or bring forward any building
or erection or to construct form or lay out
any means of access to any building or erection
in contravention of the Restriction of Ribbon
Development Act 1935; or

15 & 16
Geo. 5. c. 16.
22 & 23
Geo. 5. c. 48.

(ii) to erect place or bring forward any building
or erection in contravention of any byelaw
or of any scheme made under the Town Plan-
ning Act 1925 or the Town and Country
Planning Act 1932 and applicable to such
building or erection or of the enactments
hereinafter mentioned.

(b) The enactments hereinbefore in this subsection referred to are— A.D. 1937. —

Section 3 (Buildings not to be brought forward of the Public Health (Buildings in Streets) Act 1888; 51 & 52 Vict. c. 52.

Section 33 (Power to prescribe improvement line for widening streets) of the Public Health Act 1925; 15 & 16 Geo. 5. c. 71.

Section 5 (Prescription of building lines) of the Roads Improvement Act 1925; 15 & 16 Geo. 5. c. 68.

Section 53 (Special provisions as to buildings constructed of materials which are short lived or otherwise unsuitable for use in permanent buildings) of the Public Health Act 1936; 26 Geo. 5. & 1 Edw. 8.

Any provision of any local Act or Order enabling a county council urban local highway or other authority to prescribe a building or frontage line to be observed in any street or road or prohibiting or controlling the erection of buildings within a specified distance of any part of any street or road. c. 49.

8. If any shelter or other accommodation is erected and maintained by the Company under the powers of the section of this Act of which the marginal note is "Shelters &c." on any part of a highway over any gas electricity or water mains pipes wires or apparatus of any local authority laid or placed before the erection of the shelter or other accommodation and the local authority give to the Company notice in writing of their desire to obtain access to any such mains pipes wires or apparatus the Company shall either remove temporarily the shelter or other accommodation or so much thereof as shall require to be so removed in order to afford such access or (if the Company determine not to remove the shelter or other accommodation or part thereof) bear any additional expense due to the existence of the shelter or other accommodation which may reasonably be incurred by the local authority in obtaining such access. For protection of gas electricity and water works.

9. The Company may make byelaws for the prevention of nuisances in or against any premises held by the Company in connection with their public service vehicles. Prevention of nuisances.

A.D. 1937.

Byelaws.

33 & 34 Vict.
c. 78.

10. All byelaws and regulations made by the Company under the provisions of this Act shall be made subject to and in accordance with the provisions of the Tramways Act 1870 with respect to the making of byelaws.

Power to
purchase
other under-
takings.

11.—(1) The Company may purchase or acquire the undertaking or part of the undertaking of any local authority company body or person providing services of public service vehicles which can be worked with any such services provided by the Company upon such terms as may be agreed upon between the Company and such local authority company body or person.

(2) Upon the completion of the purchase or acquisition of any such undertaking or part thereof as aforesaid the said undertaking or part thereof shall form part of the undertaking of the Company.

OBJECTS OF COMPANY.

Objects of
Company.

12.—(1) As from the passing of this Act the Company shall be deemed to be incorporated for the purpose of providing services of public service vehicles and for other purposes of the existing Act and Orders as amended by this Act and of this Act and of any other Act or Order from time to time relating to the Company.

(2) So much of section 4 (Company incorporated) of the Order of 1901 as is inconsistent with subsection (1) of this section is hereby repealed.

FINANCIAL PROVISIONS.

Alteration
of capital.

13. The Company with the authority of three-fourths of the votes of the shareholders present in person or by proxy entitled to and voting at an extraordinary general meeting of the Company specially convened for the purpose may—

(a) consolidate and divide all or any of the share capital of the Company into shares of larger amount than the existing shares;

(b) sub-divide the existing shares or any of them into shares of smaller amount so however that in the subdivision the proportion between the amount paid and the amount if any unpaid on each reduced share shall be the same as it was in the case of the share from which the reduced share is derived.

14.—(1) Subject to confirmation by a court having jurisdiction to wind up a company registered in accordance with the Companies Act 1929 the Company with the authority of three-fourths of the votes of the holders of shares or stock of the Company present in person or by proxy entitled to vote and voting at an extraordinary general meeting of the Company specially convened for the purpose may reduce the capital of the Company in any way and in particular without prejudice to the generality of the foregoing power may—

A.D. 1937.

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Reduction
of capital.
19 & 20
Geo. 5 c. 23.

- (a) extinguish or reduce the liability on any shares or stock in respect of capital not paid up; or
- (b) either with or without extinguishing or reducing liability on any shares or stock cancel any paid-up capital which is lost or unrepresented by available assets; or
- (c) either with or without extinguishing or reducing liability on any shares or stock pay off any paid-up capital which is in excess of the wants of the Company.

(2) The Company shall give not less than twenty-one days' notice of any extraordinary general meeting to be held for the purpose of this section and such notice shall specify the terms of the resolution or resolutions to be submitted to such meeting. Provided that if all the proprietors entitled to attend and vote at any such meeting so agree the meeting may be held notwithstanding that less than twenty-one days' notice has been given.

(3) For the purposes of this section the provisions of sections 56 57 59 and 60 of the Companies Act 1929 shall mutatis mutandis apply as if the Company were a company registered in accordance with the Companies Act 1929.

15. The Company may create and issue debenture stock subject to the provisions of Part III of the Companies Clauses Act 1863 but notwithstanding anything therein contained the interest of all debenture stock and of all debentures and mortgages at any time created and issued or granted by the Company under the existing Act and Orders and this Act or any subsequent Act or Order shall subject to the provisions of any subsequent Act or Order rank *pari passu* (without respect to the

Debenture
stock.

A.D. 1937. — dates of the securities or of the Act or Order or resolutions by which the stock debentures and mortgages were authorised) and shall have priority over all principal moneys secured by such stock debentures and mortgages. Notice of the effect of this enactment shall be endorsed on all debentures mortgages and certificates of debenture stock issued after the passing of this Act.

Redeemable
securities.

16.—(1) The Company may issue as redeemable preference shares or stock or redeemable debentures or debenture stock any preference shares or stock or debentures or debenture stock which the Company are by the existing Act and Orders and this Act authorised to create and issue provided that the resolution authorising the creation or issue of such redeemable preference shares or stock debentures or debenture stock (hereinafter in this section referred to as “redeemable shares or stock”) shall specify the terms and conditions on which such redeemable shares or stock shall be redeemed.

(2) If it is so provided in the resolution under which redeemable shares or stock are or is created or issued as the case may be the Company may—

- (a) call in and pay off the redeemable shares or stock or any part thereof at any time before the fixed date of redemption; and
- (b) redeem the redeemable shares or stock or any part thereof either by paying off the same or by issuing to any shareholder stockholder debenture holder or debenture stock holder subject to his consent other shares stock or securities in substitution therefor and may for the purpose of providing money for paying off the redeemable shares or stock or of providing substituted shares stock or securities create and issue new shares stock or securities (either redeemable or irredeemable) or re-issue redeemable shares or stock originally created and issued under this section. Provided that the creation and issue for the purpose of any particular class of capital does not make the total nominal amount of such capital exceed the amount of that class of capital which the Company are by the existing Act and Orders

and this Act for the time being authorised to raise save so far as such creation and issue is for the purpose of paying off redeemable shares or stock issued under the provisions of this section or of providing shares stock or securities substituted therefor under this section.

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(3) All redeemable shares or stock created and issued in exercise of the powers of this section shall (except as may be otherwise expressly provided by the resolution creating the same) be issued subject to the condition that the Company may under the powers conferred or to be conferred by this Act and by any subsequent Act or Order create and issue further amounts of redeemable shares or stock ranking *pari passu* with the issued redeemable shares or stock as regards principal as well as interest.

17.—(1) The Company may at any time purchase by agreement any debentures or debenture stock of the Company and for that purpose may apply any moneys for the time being in their hands which they are entitled to apply to capital purposes.

Purchase
and cancel-
lation of
Company's
securities.

(2) Any debentures or debenture stock purchased under the provisions of this section may at any time be cancelled and extinguished and the amount of any debentures or debenture stock so cancelled or extinguished shall be deemed to be money borrowed and paid off by the Company within the meaning of section 39 of the Companies Clauses Consolidation Act 1845 and the provisions of that section as to re-borrowing by the Company shall apply accordingly.

8 & 9 Vict.
c. 16.

18. The Company on any offer of shares stock debentures debenture stock or other securities which the Company may at any time be authorised to issue may pay a commission not exceeding (except with the consent of the Minister) five per centum to any person in consideration of his subscribing or agreeing to subscribe whether absolutely or conditionally for such shares stock debentures debenture stock or securities or procuring or agreeing to procure subscriptions therefor whether absolute or conditional if the payment of the commission and the amount or rate per centum of the commission paid or agreed to be paid are disclosed in the

Power to
pay com-
missions.

A.D. 1937. — prospectus advertisement or other document of the Company inviting subscriptions or offers for such shares stock debentures debenture stock or securities Nothing in this section shall affect any power of the Company to pay brokerage.

Exercise of
financial
powers by
directors.

19. Notwithstanding anything in any Act or Order the directors may from time to time by virtue of this section and without further or other sanction or authority exercise any power vested in the Company by sections 70 (Capital) 71 (Preference shares) and 75 (Power to borrow) of the Order of 1901 sections 21 (Power to raise additional capital) 22 (Preference shares) 26 (Further borrowing powers to the Company) and 31 (Power to issue debenture certificates to bearer) of the Order of 1907 sections 20 (Power to raise additional capital) 21 (As to disposal of new shares or stock) 22 (As to new preference shares) and 24 (Further borrowing powers to the Company) of the Order of 1920 section 28 (Further borrowing powers to the Company) of the Order of 1926 and the sections of this Act of which the marginal notes are respectively "Debenture stock" "Redeemable securities" and "Power to pay commissions" and the said sections shall be deemed to have enabled the directors to raise any such sums of money as are mentioned in those sections respectively or any of them and to have conferred upon the directors all powers necessary for the purposes thereof.

Calls.

20. In respect of any capital issued after the passing of this Act the directors may notwithstanding anything contained in the existing Act and Orders make such calls upon the respective holders of shares or stock in respect of the amount of capital respectively subscribed or owing by them of such amounts and at such times as the directors may think fit.

Company
may incur
temporary
loans.

21.—(1) The directors may for the purposes of or in connection with the undertaking of the Company borrow or raise moneys on temporary loans by means of overdrafts or otherwise or by the issue of notes or bonds of a currency of not less than five years and of not more than ten years.

(2) The powers of raising moneys conferred by this section shall be in addition to any powers for the time being of the Company to borrow on debenture

or mortgage of the undertaking of the Company or to raise money by the issue of debenture stock Provided that the aggregate amount outstanding at any one time of the moneys raised under this section shall not exceed thirty thousand pounds. A.D. 1937.
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ADMINISTRATIVE PROVISIONS.

22.—(1) Notwithstanding anything contained in the Companies Clauses Consolidation Act 1845 it shall not be necessary for the Company to give public notice of any meeting of the Company whether ordinary or extraordinary. Notice of meetings.

(2) Any meeting of the Company whether ordinary or extraordinary may be convened by notice delivered at or sent by post to the registered address or other known address of each proprietor of the Company Provided that the notice if delivered shall be delivered at such address as aforesaid not less than six clear days or if sent by post shall be prepaid and posted not less than seven clear days before the date of the meeting In proving that any such notice has been sent by post it shall be sufficient to prove that the notice was properly addressed and put into the post and prepaid not later than the time hereby prescribed.

23.—(1) At all general meetings of the Company whether ordinary or extraordinary every holder of ordinary shares or stock shall on a show of hands be entitled to one vote and on a poll to one vote in respect of each one pound of such ordinary shares or stock held by him Provided that no shareholder or stockholder shall be entitled to vote at any meeting in respect of any share or stock on which any call remains unpaid. Voting.

(2) Except as otherwise provided by the resolution creating the same no person shall be entitled to vote in respect of any shares or stock to which a preferential dividend shall be assigned.

24. Notwithstanding anything in the Companies Clauses Consolidation Act 1845 the attorney of any shareholder or stockholder of the Company duly authorised in writing to appoint a proxy may appoint a proxy to vote for and on behalf of the shareholder or stockholder and for that purpose may execute on behalf of the shareholder or stockholder the necessary form of proxy : Appointment of proxies.

A.D. 1937.
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Provided that except in cases where the instrument appointing the attorney shall have been previously registered with the Company the instrument or (if the instrument has been deposited with the Central Office of the Supreme Court) an office copy thereof shall be transmitted to the secretary at the same time as the instrument appointing the proxy.

Joint
holders.

25. Notwithstanding anything contained in the Companies Clauses Consolidation Act 1845 where several persons are jointly entitled to and registered as holders of any shares or stock in the capital of the Company any one of those persons may vote at any meeting (at which holders of shares or stock of the same class are entitled to vote) either personally or by proxy in respect of the shares or stock as if he were solely entitled thereto but if more than one of the joint holders be present at any meeting personally or by proxy that one of the said persons so present whose name stands first on the register in respect of the shares or stock shall alone be entitled to vote in respect thereof Several executors or administrators of a deceased member in whose name any share or stock stands shall for the purpose of this section be deemed joint holders thereof.

Annual
accounts.

26. If and so long as the ordinary meetings of the Company shall be held once only in each year the balance sheet and accounts made up in accordance with section 116 of the Companies Clauses Consolidation Act 1845 shall relate to the transactions of the Company in the course of the preceding year.

Registers of
transfers.

27. Notwithstanding anything in the Companies Clauses Acts 1845 to 1889 it shall not be obligatory on the Company to keep a register of transfers of shares or stock or a register of transfers of mortgages debentures or debenture stock so long as the Company in lieu of those registers shall keep a file of all transfers and evidence of transmission of any shares stock mortgages debentures or debenture stock of the Company which are sent to them for registration in accordance with the provisions of those Acts.

Closing of
registers.

28.—(1) The directors may close the registers of shareholders and stockholders for a period not exceeding fourteen days previous to the declaration

of any dividend and they may close the register of mortgages debentures or debenture stock for a period not exceeding fourteen days previous to each date at which the interest thereon shall be payable and in the case of any such register they may fix a day for closing the same of which seven days' notice shall be given either by circular to each proprietor or by advertisement in some newspaper circulating in the district within which the principal office of the Company is situate.

A.D. 1937.

(2) Any transfer of shares stock mortgages debentures or debenture stock lodged with the Company for registration during the time when the registers are so closed shall as between the Company and the person claiming under the same but not otherwise be considered as made subsequently to the declaration of any such dividend or the payment of any such interest as the case may be.

29. As from the passing of this Act the qualification of a director shall be the possession of shares or stock or shares and stock of the nominal value of one hundred pounds and every director who is not qualified at the time of his appointment as a director shall obtain his qualification within two months after his appointment and if any director does not within such two months obtain his qualification he shall vacate his office as director and shall be incapable of being re-appointed a director until he has obtained his qualification.

Qualifica-
tion of
directors.

30. For the purposes of section 54 (As to qualification of directors) of the Act of 1929 a general notice given to the directors by one of them to the effect that he is a member of a specified company or firm and is to be regarded as interested in any contract which may after the date of the notice be made with that company or firm shall be deemed to be a sufficient declaration of interest in relation to any contract so made.

Notice of
interest of
director in
contracts.

31.—(1) If any director shall devote to the business of the Company either his whole time and attention or more of his time and attention than in the opinion of the directors would usually be so devoted by a person holding such office or shall undertake or perform any duties or services other than those which in the opinion

Further
provisions
as to
directors.

A.D. 1937. — of the directors would usually be undertaken or performed by a person holding such office or shall be called upon to perform and shall perform extra services for any of the purposes of the Company then and in any of those cases the directors may remunerate the director so doing either by a fixed annual sum or otherwise or in such other manner as shall be determined by the directors and such remuneration may at the discretion of the directors be either in addition to or in substitution for all or any part of any other remuneration to which the director may be entitled Provided that the amount of such remuneration shall be disclosed in the next annual report of the directors or in the next annual accounts of the Company.

(2) Each director shall be reimbursed out of the funds of the Company his reasonable travelling and out-of-pocket expenses while employed on the business of the Company or attending meetings of the directors or of the Company.

Power to
grant pen-
sions &c.

32.—(1) The directors may grant such gratuities pensions or allowances or make such other payments as they may think fit to any employee of the Company or where in their opinion adequate provision is not otherwise made to the widow or family or any dependant of any such employee and may if they think fit establish and maintain a fund for that purpose.

(2) The directors may enter into and carry into effect agreements with any insurance company or other association or company for securing to any such employee widow family or dependant as aforesaid such gratuities pensions allowances or payments as are by this section authorised to be granted or made and may for all or any of the purposes of this section apply set aside and accumulate the funds and revenues of the Company.

(3) No pensions fund established under this section to which the employees of the Company are required to contribute shall come into operation until it has been registered under the Superannuation and other
17 & 18
Geo. 5. c. 41. Trust Funds (Validation) Act 1927.

(4) In this section the word "employee" includes any officer workman or servant.

33. Section 98 (Proceedings to be entered in books to be signed by chairman and to be evidence) or the Companies Clauses Consolidation Act 1845 shall in its application to the Company have effect as if the words “or of the next succeeding meeting” were inserted therein after the words “shall be signed by the chairman of such meeting.”

A.D. 1937.

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Signing of
minutes.

34. Any deed to which the Company are a party and any other document requiring to be sealed by the Company shall be held to be validly executed on behalf of the Company if it is sealed with the common seal of the Company and subscribed on behalf of the Company—

Execution
of deeds.

(a) by any two of the directors; or

(b) by any one of the directors and the secretary or other person appointed in that behalf by the directors;

and such subscription on behalf of the Company shall be equally binding whether attested by witnesses or not.

MISCELLANEOUS.

35. The Minister may hold such inquiries as he may consider necessary in regard to the exercise of any powers or duties conferred upon him or the giving of consents under the existing Act and Orders and this Act and subsections (2) to (5) of section 290 (Power of government departments to direct inquiries) of the Local Government Act 1933 shall apply to any such inquiry as if it were an inquiry held in pursuance of subsection (1) of that section and the Company were a local authority.

Inquiries by
Minister.

23 & 24
Geo. 5. c. 51.

36. Nothing in this Act shall be in derogation of the provisions of Part IV of the Road Traffic Act 1930 or of Part IV of the Road Traffic Act 1934.

Saving provi-
sions of Road
Traffic Acts 1930
to 1934.
24 & 25 Geo. 5.
c. 50.

37. The following provisions of the existing Act and Orders are hereby repealed (viz.):—

Repeal.

The Order of 1901—

Section 7 (Qualification of directors);

Section 73 (Calls);

Section 77 (Company not to create debenture stock).

A.D. 1937.

The Order of 1907—

Section 23 (Restriction as to votes in respect
of preferential shares or stock).

The Order of 1920—

So much of section 23 as incorporates section 23
(Restriction as to votes in respect of pre-
ferential shares or stock) of the Order of
1907;

Section 31 (Closing of transfer books previous
to declaring interim dividend).

The Act of 1929—

Subsections (2) (3) and (5) of section 32 (Power
to run omnibuses);

So much of section 35 (Periodical revision of fares
and charges) as relates to fares and charges
in respect of traffic on omnibus routes;

Section 64 (Inquiries by Minister).

Costs of
Act.

38. All costs charges and expenses of and inci-
dental to the preparing for obtaining and passing of this
Act or otherwise in relation thereto shall be paid by the
Company.

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